

1.

CASE #	CASE NAME	HEARING NAME
CVRI2300518	SOTO JUAREZ vs RANCHO FRESCO MARKETS, INC.	MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

Tentative Ruling: Appearances requested:

1. Confirm that defense counsel is not aware of other cases making similar class, collective or representative claims.
2. Discuss bidding process—for selection of administrator and why Rust Consulting is the appropriate choice. There is no declaration from Rust Consulting as required by the CMO.
3. Papers refer to a declaration of Eric Bishop, but no such declaration has been filed.
4. PAGA release does not appear to be limited to the claims stated in the LWDA notice.
5. Proposed order does not attach the notice, objection or exclusion forms.
6. No declaration from defendant concerning class members' likely age, education, experience, or ability to understand notice in English.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2305850	LOVE vs PULTE HOME COMPANY, LLC	MOTION FOR SUMMARY ADJUDICATION ON 2 ND AMENDED COMPLAINT FOR CONSTRUCTION DEFECT

Tentative Ruling: No tentative ruling, appearances requested.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507342	GARCIA vs RIVERSIDE UNIVERSITY HEALTH SYSTEM FOUNDATION	DEMURRER ON 2 ND AMENDED COMPLAINT

Tentative Ruling: Plaintiff Melissa Garcia brings this action against defendant Riverside University Health System Foundation and Riverside County, alleging various wage and hour claims, including that she was not paid minimum and overtime wages, sick leave, wages due on separation from employment, not provided rest or meal breaks and accurate wage statements. The SAC includes derivative claims for violation of the Unfair Competition Law and for civil penalties under PAGA. The action includes class claims.

County demurs to the second through fifth causes of action (for failure to pay minimum wages and sick leave and for failure to provide meal and rest breaks) because plaintiff did not allege compliance with the Government Claims act and did not exhaust administrative remedies. It asserts that the meal and rest break claims fail because the

County is not subject to meal and rest break obligations and a CBA governs remedies for such claims. It also asserts that regulation of meal and rest breaks intrude on its constitutional authority.

Plaintiff argues that her claims are exempt from the Government Claims Act and that this issue cannot be resolved by demurrer. She also argues that she is not required to exhaust the grievance procedure under the CBA and that she has adequately pled her meal and rest break claims.

Request for Judicial Notice: Grant as to the MOUs between County and SEIU Local 721 (exhibits A and B to the RJN). Official acts of government entities are subject to judicial notice. Under *Scott v. JP Morgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 743, judicial notice of a contract prepared by and entered into by a governmental entity was appropriate. The court of appeal stated: “[w]here, as here, judicial notice is requested of a legally operative document – like a contract – the court may take judicial notice not only of the fact of the document and its recording or publication, but also facts that clearly derive from its legal effect.” 214 Cal.App.4th at 754.

Grant as to the Legislative Council’s Digest of SB 1334, which added Labor Code § 512.1 (exhibit C to the RJN). The document is an official act of the Legislative department of the state.

Deny as to the Riverside University Health System’s Policy No. 455 (meal and rest break policy, Exhibit D to the RJN) because there is no allegation in the operative complaint as to the policy and because RUHS is not a governmental entity; the SAC alleges that it is a California Corporation. SAC ¶ 13. Thus, this document does not appear to meet the requirements of Evidence Code §§ 451 or 451.

Exhibit E to the RJN is a spreadsheet prepared for this motion; it does not appear to fall within the description of an official act of the County or any other provision of Evidence Code §§ 451 or 452 so the request is denied.

Grant as to County ordinance § 4.04.010 (exhibit F to the RJN); it is squarely within Evidence Code § 452(c).

Government Claims Act: County argues that Garcia failed to allege compliance with the Act and therefore her second through fifth causes of action against it are barred. When a claim is required, the “failure to timely preset a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that entity.” *State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1239. Government Code § 905(c), provides that a claim shall be presented for all claims for money or damages against a government entity, except “[c]laims by public employees for fees, salaries, wages, mileage, or other expenses and allowances.” County argues that while § 905(c) exempts these claims, under Government Code § 935 and an ordinance adopted by County, Garcia’s claims are still subject to a government claim requirement.

Section 935(a) requires that “[c]laims against a local public entity for money or damages which are excepted by Section 905 from Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of this part, and which are not governed by any other statutes or regulations expressly relating thereto, shall be governed by the procedure prescribed in any charter, ordinance, or regulation adopted by the local public entity.” County Ordinance 4.04.010, requires that all claims against the County for money or damages that are exempt from Government Code § 905 to be submitted in writing by

mail or delivery to the clerk of the Board of Supervisors, County Auditor-Controller, or the Board of Supervisors in compliance with the requirements set forth in Government Code §§ 910-915.2. A claim must be presented not later than the time period specified in Government Code § 911.2 after the accrual of the cause of action. County asserts that there are no allegations regarding compliance with this claim filing requirement in the SAC.

The SAC does not allege compliance with the filing requirement. Based on § 935 and the County ordinance, a claim was required. Garcia argues that § 935 does not apply to her second through fifth causes of action because they are statutory claims and the phrase “which are not governed by any other statutes or regulations expressly relating to” exempts her claims.

This is incorrect. Statutes that provide a right of action are not covered by the phrase “[c]laims . . . which are not governed by any other statutes or regulations expressly related thereto” in § 935. *Tapia v. County of San Bernardino* (1994) 29 Cal.App.4th 375, 384-385 (statute does not prescribe procedures for filing a claim for wages but only the duty to pay wages or to reinstate). Put another way, the exemption from § 935 is for other statutes or regulations that have specific claims procedures, not for statutes or regulations that create substantive duties, such as the statutes which Garcia alleges County to have violated.

Garcia cites cases holding that a wage and hour claim may be brought against a government entity, but that does not the point—she does not allege compliance with the claims requirements, which are necessary to bring a claim against the County.

Therefore, the demurrer is sustained as to the second through fifth causes of action.

Exhaustion of CBA Procedures. County asserts that the second through fifth causes of action are barred for a separate reason: Garcia failed to exhaust administrative remedies. Exhaustion of administrative remedies, including “internal grievance procedures” provided by a public entity, is a jurisdictional prerequisite to filing an action in court. Noting that requiring the exhaustion of administrative remedies serves to (1) mitigate damages; (2) recognize the expertise of the quasi-judicial tribunal; and (3) promote judicial economy, an appellate court held the University of California employee who brought an action pursuant to Labor Code section 1102.5 was required to exhaust internal administrative remedies. *Romero v. County of Kern* (2025) 116 Cal.App.5th 1189, 1201. The requirement also applies to permissive internal administrative remedies. *Williams v. Housing Authority of Los Angeles* (2004) 121 Cal.App.4th 708, 734. It applies even when there is an internal administrative remedy that is not mandatory. *Id.* at 735-736, citing *Palmer v. Regents of University of California* (2003) 107 Cal.App.4th 899, 905-906 (“permissive internal administrative remedies must” be exhausted).

However, the internal grievance procedure that the County contends Garcia did not exhaust is in a CBA which provides for binding arbitration. RJA Exs. A (at 83-88) and B (at 86-88). Employees cannot be required to arbitrate statutory rights under a CBA. *Zavala v. Scott Brothers Dairy, Inc.* (2006) 143 Cal.App.4th 585, 594-595. Therefore, it does not appear that Garcia must exhaust remedies under the CBA before bringing an action for statutory violations.

Meal and Rest Break Claims. County makes a separate argument as to whether the fourth and fifth causes of action may be maintained against it because Labor Code §§

512 and 226.7 do not apply to government employers, citing *Stone v. Alameda Health System* (2024) 16 Cal.5th 1040, 1054-1057. However, Garcia bases her claims on Labor Code § 512.1, which *Stone* does not address. In *Stone*, the court of appeal found that the Legislature was able to bring government entities within the scope of sections 512 and 226.7, but had not done so. *Id.* at 1055-1056. In contrast, Labor Code § 512.1(e)(2) specifically states that: "'Employer' means the state, political subdivisions of the state, *counties*, municipalities, and the Regents of the University of California." (Emphasis added.) Thus, the reasoning in *Stone* does not apply to claims made under § 512.1.

County cites *County of Riverside v. Superior Court* (2003) 30 Cal.4th 278, arguing that the Legislature lacked the authority to apply § 512.1 to it. That decision did not address § 512.1. Instead, it considered *California Code of Civil Procedure* § 1299, which required counties to submit to binding arbitration of economic issues that arose during union negotiations. The Supreme Court found that this impacted the County's constitutional right to determine its employees' wages and thus that § 1299 did not apply to the County. 30 Cal.4th at 285 ("The constitutional language is quite clear and quite specific: the county, not the state, not someone else, shall provide for compensation of its employees. Although the language does not expressly limit the power of the Legislature, it does so by 'necessary implication.'")

Other cases have applied this reasoning to wage and hour matters. In *Dimon v. County of Los Angeles* (2008) 166 Cal.4th 1276, 1282-1283, the court found that statutes pertaining to meal and rest breaks under Labor Code § 510 were not applicable to counties because the state Constitution expressly granted authority to counties to set compensation for county employees and meal and rest break statutes that required compensation for breaks that are not provided regulate compensation. *Id.* at 1282.

In *Curcini v. County of Alameda* (2008) 163 Cal.App.4th 629, 642-645, the Court found that meal and rest break under Labor Code § 510 and overtime statutes cannot apply to counties because of their constitutional right to set compensation of their employees. "We are persuaded that overtime pay as described in Labor Code section 510 and 1194 addresses matters of 'compensation.' Further, we agree with those cases that have concluded that such compensation matters are of local rather than statewide concern." *Id.* at 643. "[T]he provisions of Labor Code section 512 prescribing meal periods, and Labor Code section 2267 providing a premium wage as compensation for missed meal and rest periods, are matters of compensation within the county's exclusive constitutional purview." *Id.* at 654.

In re Work Uniform Cases (2005) 133 Cal.App.4th 328, 337, also found that statutes governing reimbursement for uniform expenses fall within the county's exclusive constitutional purview regarding compensation.

Section 512.1 pertains to meal and rest breaks. It provides: "[i]f an employer fails to provide to an employee a meal period or rest period in accordance with this section, the employer shall pay the employee one additional hour of pay at the employee's regular rate of compensation for each workday that the meal or rest period is not provided." *Cal. Lab. Code* § 512.1(c).

There does not seem to be a principled basis on which to distinguish § 512.1 from the cases finding that the Legislature could not impose on a county requirements for paying its employees. Section 512.1 requires County to pay additional hour of pay for work during meal or rest periods. Thus, it violates Article XI § 1(b) of the California Constitution.

For this additional reason the demurrer is sustained as to the fourth and fifth causes of action.

Sick Leave Claim. County argues that the third cause of action, for failure to pay sick leave, also violates the Constitution because it intrudes on the County's authority to provide for the compensation of its employees. There are no appellate cases discussing sick leave and how it applies to a county's authority over employee compensation. However, based on the reasoning in *Dimon*, *Curcini*, and *In re Work Uniform Cases*, it appears that the statutes governing sick leave, which address the payout for sick leave and compensation for failure to allow the taking of sick leave (*Labor Code* §§ 233, 246, and 246.5), are covered by the County's exclusive constitutional authority regarding compensation and therefore the demurrer to the third cause of action is sustained for this additional reason.

Appearances requested to discuss whether Garcia should have leave to amend any of these causes of action.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2602077	DELACRUZ vs BEENA BEAUTY HOLDING, INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Plaintiff Yadira Delacruz brings this wage and hour action against defendants Deena Beauty Holding, Inc. and Planet Beauty, Inc. (collectively, Deena Beauty). The complaint includes a derivative claim for violation of the Unfair Competition Law and class claims.

Deena Beauty moves to compel arbitration of Delacruz's individual claims, to dismiss or strike her class claims and her wage statement cause of action, and to stay the case. They argue that the FAA applies to the agreement, that the fourth cause of action is time-barred, and that Delacruz's counsel agreed to dismiss it.

Delacruz does not challenge the dismissal of the fourth cause of action and agrees not to bring a PAGA cause of action. However, she contends that the agreement is so unconscionable that it should not be enforced because it is a contract of adhesion, that it is overbroad as to scope, requiring her to arbitrate claims that have nothing to do with the parties' employment relationship, is of indefinite duration, and lacks mutuality as to specified third parties.

Request for Judicial Notice. Delacruz requests judicial notice of Deena Beauty's website, store locator, and location and addresses of 15 of their stores. It does not appear that Deena Beauty objects. Grant the request for judicial notice.

Procedure. *California Code of Civil Procedure* section 1281.2 describes the process for deciding a petition to compel arbitration. "The clear purpose and effect of section 1281.2 is to require the superior court to determine in advance whether there is a duty to arbitrate the controversy The performance of this duty necessarily requires the court to examine and, to a limited extent, construe the underlying agreement." *Freeman v. State Farm Mutual Automobile Insurance Co.* (1975) 14 Cal.3d 473, 480. "In ruling on a petition to compel arbitration, the trial court may consider evidence on factual issues relating to the threshold issue of arbitrability Parties may submit declarations when factual